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May 23, 2022

Chief, Foreign Investment Review Section (FIRS)
Deputy Chief, Compliance and Enforcement (FIRS)
On Behalf of the Assistant Attorney General for National Security
United States Department of Justice
National Security Division
175 N Street, NE
Washington, DC 20530

Subject: TT 21-075 to -076; ITC-T/C-20211108-00165; WC 21-434
Joint application by Peerless Network, Inc. for consent to transfer of control of domestic and international authority pursuant to Section 214 of the Communications Act of 1934, as amended, to provide global or limited global facilities-based and resale services.

Dear Sir/Madam:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments that Peerless Network, Inc. (“PNI”) and its subsidiaries, Airus, Inc. and WaveNation, LLC, (with PNI, collectively the “PNI Companies”), Infobip Ltd., and Infobip Inc. make to the U.S. Department of Justice (“USDOJ”), including the Federal Bureau of Investigation (“FBI”), to address national security and law enforcement risks arising from the above-referenced application to the Federal Communications Commission (“FCC”) requesting consent to transfer control from Peerless Holdings Inc. to Infobip Inc. of the authorization to provide domestic and global or limited global facilities-based and resale services between the United States and permissible international points pursuant to Section 214 of the Communications Act of 1934, as amended, 47 U.S.C. § 214, and the implementing regulation at 47 C.F.R. § 63.18(e)(1).¹ The PNI Companies presently operate pursuant to PNI’s extant international Section 214 authorization, FCC File No. ITC-214-20080304-00146.

¹ See FCC No: ITC-T/C-20211108-00165; WC 21-434.

The PNI Companies, Infobip Ltd., and Infobip Inc. certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements it or its representatives have made to USDOJ, including the FBI, the Department of Homeland Security, the Department of Defense, and the FCC in the course of the review of the above-referenced application that was conducted pursuant to Executive Order 13913², and they hereby adopt those statements as the basis for this LOA.

Definitions

1. For purposes of this LOA, the following definitions apply:
 - a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (IT) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.
 - b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.
 - c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).
 - d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.
 - e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the FCC Application.
 - f. “Domestic Communications” (“DC”) means:
 - (i) Wire Communications or Electronic Communications, as defined by 18 U.S.C. § 2510, (whether stored or not), from one location within the United States, including its territories, to another location within the United States; or
 - (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

² 85 Fed. Reg. 19643 (Apr. 8, 2020).

g. “Domestic Communications Infrastructure” (“DCI”) means any system of the PNI Companies that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, the PNI Companies to provide, process, direct, control, supervise, or manage DC, but would not include the systems of entities for which the PNI Companies have a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network access.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. § 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 et seq.;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 et seq. and 50 U.S.C. § 1841 et seq.;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Geolocation Data” means any information collected by any of the PNI Companies from its customers regarding a customer’s location or the customer’s device location.

k. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial or arbitral body.

l. “Infobip” for the purposes of this LOA is defined as Infobip Inc (USA) and Infobip Ltd (UK) and any other companies (or their successors in interest) in the ownership chain of the PNI Companies.

m. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

n. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal process, statutory authorizations and certifications for Electronic Surveillance, physical search and seizure, production of tangible things or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

o. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
- (ii) provision of DC or operation of DCI, including: customer support; OSS; BSS; Network Operations Centers (“NOCs”); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and datacenter services and operations.

p. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

q. “Offshore” means performing obligations of this LOA using entities and personnel outside of the territorial limits of the United States, whether or not those entities or personnel are employees of the PNI Companies or Infobip.

r. “Outsource” means, with respect to DC, supporting the services and operational needs of the PNI Companies at issue in this LOA using contractors or third parties.

s. “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including his or her name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

t. “Principal Equipment” means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations.

u. “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

v. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the computer network(s) or associated information systems of the PNI Companies:
 - A. Unauthorized disruptions to a service or denial of a service;
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - D. Unplanned incidents that cause activation of the PNI Companies’ Cybersecurity Incident Response Plans;
 - E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the company’s ability to comply with the terms of this LOA; or
 - F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

w. “Sensitive Personal Data” means sensitive personal data as set forth in 31 C.F.R. § 800.241.

x. “Subscriber Information” means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

y. “U.S. Records” means the PNI Companies’ customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by the PNI Companies within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. § 2703(c), (d) and 18 U.S.C. § 2709.

Personnel

2. The PNI Companies agree to designate and maintain a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless USDOJ otherwise agrees in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. The PNI Companies agree to provide the LEPOC’s PII to USDOJ within 15 days of the Date of FCC Approval. USDOJ agrees to object or non-object within 15 days from receiving the LEPOC’s PII.

4. The PNI Companies agree to notify USDOJ, including the FBI, in writing at least 30 days prior to modifying its LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within five days of such event. Under these circumstances, USDOJ and FBI will object or non-object to the replacement LEPOC within 30 days of notification.

5. The PNI Companies agree that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than five days after receiving such Lawful U.S. Process unless USDOJ grants an extension.

6. The PNI Companies agree to implement, either directly or through a vendor, a process to screen existing or newly hired PNI Companies’ personnel or any personnel of an approved Outsourced or Offshored service provider performing under an agreement with the PNI Companies who have Access to the PNI Companies’ DC, DCI or U.S. Records. The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person’s trustworthiness. The PNI Companies further agree to provide USDOJ with a written description of this personnel-screening process no later than 60

days after the Date of FCC Approval. USDOJ agrees to object or non-object within 60 days of receiving such description.

7. The PNI Companies agree to notify USDOJ of all its Foreign person employees, and Foreign person employees of approved Outsourced or Offshored service providers, that it intends to allow Access to U.S. Records, DC, or DCI. The PNI Companies agree to make such notification no less than 30 days prior to the date by which it is seeking such Access be granted; or, with respect to any Foreign persons with such Access as of the Date of FCC Approval, within 30 days of the Date of FCC Approval. The PNI Companies further agree to provide the PII to USDOJ for each Foreign person so identified. USDOJ agrees to object or non-object within 30 days of receiving notice.

Security Officer

8. The PNI Companies agree to designate and maintain a security officer (“Security Officer”) who is a non-dual United States citizen residing in the United States, and may also designate and maintain an alternate security officer (“Alternate Security Officer”) to fulfill the responsibilities of the Security Officer in the event of his or her unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible to obtain and maintain a “Secret” level or higher U.S. Government security clearance immediately upon appointment. The Security Officer and any Alternate Security Officer will have the appropriate authority and skills to implement the terms of this LOA and to address security concerns identified by the USDOJ. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority within the PNI Companies to perform his/her duties under this LOA. The Security Officer and any Alternate Security Officer will possess the necessary resources and skills to enforce this LOA and to act as a liaison to the USDOJ regarding compliance with this LOA and to address any national security or law enforcement issues arising during the PNI Companies’ due course of business. The PNI Companies will provide the Security Officer and any Alternate Security Officer with Access to the PNI Companies’ business information that is necessary for the Security Officer and any Alternate Security Officer to perform his/her duties.

9. The Security Officer will be available 24 hours per day, 7 days per week, to respond to and address any national security or law enforcement concerns that USDOJ may raise with respect to the PNI Companies or their operations, except that if the PNI Companies designate an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon request by USDOJ, the Security Officer or, as applicable, Alternate Security Officer, will make himself/herself available in person within the United States or its territories within 72-hours, at a date and location, including in a classified setting, as deemed necessary by USDOJ.

10. The PNI Companies agree to nominate a proposed candidate for Security Officer to USDOJ within 15 days of the Date of FCC Approval of the Application, and thereafter will provide at least 10 days’ notice of a Security Officer’s departure, and 30 days’ prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice of such departure or designation

must be provided within five days of such event) of such proposed change. The PNI Companies further agree to not maintain a vacancy or suspension of the Security Officer position for a period of more than 60 days. In the event that the PNI Companies designate an Alternate Security Officer, the PNI Companies will nominate a proposed candidate for Alternate Security Officer at least 30 days prior to the date on which the PNI Companies proposes to designate an Alternate Security Officer. The PNI Companies agree to provide the proposed Security Officer's (and any Alternate Security Officer's) PII with the nomination. All Security Officer nominations and any Alternate Security Officer nominations will be subject to USDOJ review and non-objection and may be subject to a background check at the sole discretion of USDOJ. USDOJ will object or not object to the proposed Security Officer or Alternate Security Officer, if applicable, within 30 days of notification. The PNI Companies agree to address concerns raised by USDOJ regarding the selection and identity of the Security Officer and any Alternate Security Officer.

Lawful U.S. Process and Requests for Information

11. The PNI Companies agree to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. The PNI Companies further agree to certify to USDOJ their compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-1010, and its implementing regulations, within 30 days from the Date of FCC Approval.

12. The PNI Companies agree to provide notice of any material modification to their lawful intercept capabilities to USDOJ within 30 days of such modification, and will re-certify their compliance with CALEA no more than 60 days following their notice to USDOJ of any material new facilities, services, or capabilities.

13. Upon receipt of any Lawful U.S. Process, the PNI Companies agree to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

14. The PNI Companies agree not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign entity, or any Foreign person, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

15. The PNI Companies agree not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

16. The PNI Companies agree to refer any requests for information described in Paragraphs 14 or 15 from a Foreign person or a Foreign Government, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than five days

after such a request, or legal process, is received by, or made known to, the PNI Companies, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

17. The PNI Companies agree not to comply with such requests from Foreign Governments and Foreign persons without prior written consent of USDOJ, or an order of a court of competent jurisdiction in the United States.

18. The PNI Companies agree to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Unauthorized Access and Security Incidents

19. The PNI Companies agree to take all appropriate measures to prevent unauthorized Access to U.S. Records, DC, and the DCI.

20. The PNI Companies agree to take all appropriate measures to prevent any unlawful use or disclosure of information relating to U.S. Records or DC.

21. The PNI Companies agree to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan (“SSP”) (together the “Plans”), each of which shall be guided by the current version of the National Institute of Standards and Technology (NIST) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. The PNI Companies will provide copies of those Plans to USDOJ within 60 days of the Date of FCC Approval for objection or non-objection. Furthermore, the PNI Companies agree that the Plans will be updated when appropriate to conform with evolving information security standards, and that the PNI Companies will make and implement additional modifications to these Plans to address concerns raised by USDOJ. USDOJ agree to object or non-object within 60 days of receiving each version of the Plan.

22. The PNI Companies agree that its Plans will include, among other things, policies relating to its information security, supply chain security, cybersecurity incident response, remote access, physical security, cybersecurity, third-party contractors, Outsourcing and Offshoring, maintenance and retention of system logs, periodic control assessments, protection of Lawful U.S. Process, protection of U.S. Records and DC obtained by the PNI Companies in the ordinary course of business, and the PNI Companies’ plans regarding new contracts or amendments to existing contracts with third-party service providers requiring those third parties to: a) notify the PNI Companies when required under Paragraphs 25 and 26, and b) screen personnel as required under Paragraph 6.

23. The PNI Companies further agree to take timely and appropriate remedial measures, as recommended by the US-Computer Emergency Readiness Team/Cybersecurity and Infrastructure Security Agency (“US-CERT”/“CISA”), an Information Sharing and Analysis Center (“ISAC”), or similar U.S. authority, to respond and recover from any cyber or supply chain incident and mitigate vulnerabilities.

24. The PNI Companies agree to notify USDOJ at least 30 days prior to changing the location for storage of U.S. Records or DC. USDOJ will object or non-object within 60 days of receipt of the PNI Companies' submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is the PNI Companies or Infobip);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Reporting Incidents and Breaches

25. The PNI Companies agree to report to USDOJ promptly, and in any event no later than 72 hours, after it learns of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by the PNI Companies, or referring or relating in any way to the PNI Companies' customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this LOA.

26. The PNI Companies agree to require any third-party service provider (including Infobip) to disclose to the PNI Companies any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within 72 hours of the third party discovering the breach or loss. The PNI Companies agree further to require any third-party service provider (including Infobip) to disclose to the PNI Companies, within 72 hours of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to the PNI Companies that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the third-party providers' supply chain.

27. The PNI Companies agree to notify USDOJ, including the points of contact ("POCs") listed in this LOA, in writing of any Security Incident or breach described in this LOA. Such notification shall take place no later than 72 hours after the PNI Companies have knowledge, or is informed by a third party providing Outsourced or Offshored services to the PNI Companies, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations.

28. The PNI Companies agree to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within seven business days after reasonable determination that a person without authorization, or in exceeding their authorization, has gained Access to, used, or disclosed CPNI, whether through the PNI Companies' network or that of a third party used by

the PNI Companies, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>.

Principal Equipment

29. The PNI Companies agree to provide USDOJ within 30 days of the Date of FCC Approval, a Principal Equipment list. USDOJ will object or non-object to the Principal Equipment list within 60 days of receipt. The Principal Equipment list shall include the following:

- a. A complete and current list of all Principal Equipment, including:
 - (i) a description of each item and the functions supported,
 - (ii) each item's manufacturer, and
 - (iii) the model and/or version number of any hardware or software.
- b. The name, address, phone number, and website for any vendors, contractors, or subcontractors involved in providing, installing, operating, managing, or maintaining the Principal Equipment.

30. The PNI Companies agree to notify USDOJ in writing at least 30 days prior to introducing any new Principal Equipment of a different make or model than the Principal Equipment identified and approved pursuant to Paragraph 29 or subsequently approved by USDOJ pursuant to this paragraph, or modifying any of its Principal Equipment. USDOJ will object or non-object to such new Principal Equipment or modification to the Principal Equipment within 30 days of receipt of notice. In an emergency situation, the PNI Companies may, without prior notice, replace existing Principal Equipment with equipment produced by the same manufacturer (who has previously been disclosed to USDOJ and cleared without objection pursuant to the procedures in Paragraph 29 of this agreement), as long as USDOJ is notified of the new equipment as soon as practicable and in no event later than 48 hours after replacement.

31. The PNI Companies agree to provide USDOJ with the name, address, phone number, and website of any providers, suppliers, and entities (even if Infobip) that will perform any maintenance, repair, or replacement that may result in introduction of new Principal Equipment or modification to Principal Equipment or systems or software used with or supporting the Principal Equipment. USDOJ will object or non-object to the nominated providers, suppliers, and entities selected by the PNI Companies within 30 days of receipt of notice.

32. The PNI Companies agree to provide to USDOJ updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence ("PoPs"), exchange points, and NOCs within 60 days from the Date of FCC Approval.

Outsourced and Offshored Services

33. The PNI Companies agree to provide USDOJ within 30 days of the Date of FCC Approval a list of all Outsourced or Offshored service providers that provide services to

the PNI Companies. USDOJ will object or non-object to the Outsourced and Offshored service provider list within 60 days of receiving it. The list should include any Outsourced or Offshored service provider that provides services for:

- a. MNSP services;
- b. NOC(s);
- c. Network maintenance services;
- d. Billing or customer support services;
- e. Any operation or service that could potentially expose the DCI, DC, or U.S. Records; and
- f. Deploying any network elements, hardware, software, core network equipment, and network management capabilities, including those that are owned, managed, manufactured, or controlled by a Foreign Government.

The PNI Companies further agree to provide the name, address, phone number, website, and description of services provided for each Outsourced or Offshored provider included on the list submitted to USDOJ pursuant to this paragraph. To the extent that Infobip or Infobip personnel provide any services as described, Infobip should be included.

34. The PNI Companies agree to notify USDOJ in writing no less than 30 days prior to the use of any new Outsourced or Offshored service providers that will provide any of the services described in Paragraph 33. The PNI Companies agree that such notification shall include all of the identifying information contained in Paragraph 33 for the new Outsourced or Offshored service provider.

35. USDOJ will object or non-object to any new Outsourced or Offshored service providers within 30 days of receiving notice.

Network Operations Centers

36. The PNI Companies agree to notify USDOJ in writing at least 60 days prior to changing the location of its NOC(s). DOJ will object or non-object to any new NOC location within 60 days of receiving notice of the proposed location change. The PNI Companies will provide the address, owner (even if the PNI Companies or Infobip), PE, and MSP (as well as any new Outsourced or Offshored service providers, even if Infobip) of the new NOC with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

Change in Ownership and Service Portfolio

37. The PNI Companies and Infobip agree to provide USDOJ notice of any changes to the PNI Companies' business, including but not limited to corporate structure changes, ultimate beneficial ownership changes, corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes no less than 30 days in advance of such change. If at any time the PNI Companies or Infobip (or any parent entity or affiliate thereof) becomes subject to the periodic reporting requirements of the Securities Exchange Act of 1934, in lieu of the 30 day advance notice requirement for beneficial ownership changes above, the PNI Companies and Infobip agree to provide USDOJ notice within 30 days of the PNI Companies or Infobip (or such parent or affiliate entity) learning of a new owner of a 5 percent or greater interest as a result of a filing submitted to the Securities and

Exchange Commission. The PNI Companies and Infobip agree to provide USDOJ notice of Infobip's ultimate beneficial ownership changes, corporate name changes, and corporate headquarter location changes. The PNI Companies and Infobip also agree to provide USDOJ notice within 30 days of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of the PNI Companies or Infobip's debts.

38. The PNI Companies agree to provide USDOJ notice of any material addition to its current portfolio of service offerings, including offering other services beyond its current service portfolio, no less than 30 days in advance of such change. USDOJ will object or non-object to the proposed new services within 30 days of receiving such notice.

Annual Report

39. The PNI Companies agree to provide an annual report to USDOJ regarding the company's compliance with this LOA, to include:

- a. If the PNI Companies submitted no notifications to USDOJ pursuant to this LOA during the preceding year, a certification that there were no developments that the PNI Companies were required to report under the LOA during the year;
- b. Description of the PNI Companies' handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein), including a list of individuals with Access to U.S. Records, DC, and DCI;
- c. Updated Principal Equipment and Offshored and Outsourced Service Provider Lists;
- d. List of any relationships with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- e. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
- f. Updated SSP and Cybersecurity Plans;
- g. Updated organizational chart showing all owners with a five percent or greater ownership share;
- h. Report(s) of any Security Incidents;
- i. A re-identification of any location(s) in which the PNI Companies store U.S. Records and the types of U.S. Records collected and stored;
- j. A re-identification of the name of and contact information of the LEPOC, Security Officer, and Alternate Security Officer;
- k. A list of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by USDOJ;
- l. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
- m. A description of the services that the PNI Companies provide in the United States to include: the specific services provided using an FCC license or authorization and other services it provides in the United States that do not require FCC license or authorization. Such a description should also detail any services provided to government or critical infrastructure customers; and

- n. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. The PNI Companies agree to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that USDOJ identifies to the PNI Companies in the future: Christine Quinn, USDOJ (at Christine.Quinn3@usdoj.gov); and Eric Johnson, USDOJ (at Compliance.Telecom@usdoj.gov). Upon USDOJ request, the PNI Companies agree to provide USDOJ with paper copies of any annual report, notices, or communications required under this LOA.

Site Visits

40. The PNI Companies agree to permit USDOJ's requests for site visits and information, approve all requests to conduct on-site interviews of the PNI Companies employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA. If approved by USDOJ, interviews may also be done using video conference.

General Provisions

41. If USDOJ finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, the PNI Companies agree to resolve USDOJ's concerns, according deference to the USDOJ's views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to the PNI Companies or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

42. The PNI Companies agree that in the event that the PNI Companies breach the commitments set forth in this LOA, to include conduct contrary to timely USDOJ objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to the PNI Companies or its successors-in-interest, in addition to pursuing any other remedy available by law or equity.

43. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

44. The PNI Companies agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to Federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

45. The PNI Companies understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the application.

For the PNI Companies

DocuSigned by:
John Barnicle
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John Barnicle
President and CEO
Peerless Network, Inc.

For Infobip Inc.

Silvio Kutić
Director
Infobip Inc.

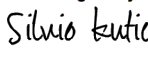
For Infobip Ltd

Silvio Kutić
Director
Infobip Ltd

For the PNI Companies

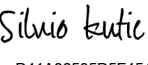
John Barnicle
President and CEO
Peerless Network, Inc.

For Infobip Inc.

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Silvio Kutić
Director
Infobip Inc.

For Infobip Ltd

DocuSigned by:

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Silvio Kutić
Director
Infobip Ltd